

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB904 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Chris Kannady

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 904

By: Gollihare, Hall, Green,
Seifried, Thompson, Rosino,
Hamilton, and Bullard of
the Senate

and

Kannady and Stinson of the
House

PROPOSED POLICY COMMITTEE SUBSTITUTE

An Act relating to gender transition procedures for
minors; defining terms; prohibiting certain use of
public funds; proscribing certain reimbursement;
prohibiting certain use of state facilities;
providing criminal penalty; providing for continuity
of care in certain circumstances; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-800 of Title 63, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. a. "Gender transition procedures" means the following
2 medical or surgical services performed for the purpose
3 of attempting to affirm an individual's perception of
4 his or her gender or biological sex, if that
5 perception is inconsistent with the individual's
6 biological sex:

7 (1) surgical procedures that alter or remove physical
8 or anatomical characteristics or features that
9 are typical for the individual's biological sex,
10 or

11 (2) puberty-blocking drugs, cross-sex hormones, or
12 other drugs to suppress or delay normal puberty
13 or to promote the development of feminizing or
14 masculinizing features consistent with the
15 opposite biological sex.

16 b. Gender transition procedures do not include:

17 (1) behavioral health care services or mental health
18 counseling,

19 (2) medications to treat depression and anxiety,

20 (3) medications prescribed, dispensed, or
21 administered specifically for the purpose of
22 treating precocious puberty or delayed puberty in
23 that patient,
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1 (4) services provided to individuals born with
2 ambiguous genitalia, incomplete genitalia, or
3 both male and female anatomy, or biochemically
4 verifiable disorder of sex development (DSD),
5 including but not limited to:

- 6 (a) 46,XX DSD,
- 7 (b) 46,XY DSD,
- 8 (c) sex chromosomes DSDs,
- 9 (d) XX or XY sex reversal, and
- 10 (e) ovotesticular disorder,

11 (5) the treatment of any infection, injury, disease,
12 or disorder that has been caused by or
13 exacerbated by the performance of gender
14 transition procedures, whether or not the gender
15 transition procedure was performed in accordance
16 with state and federal law, or

17 (6) the treatment of any physical injury or illness
18 that would, as certified by a physician, place
19 the individual in imminent danger of death or
20 impairment of a major bodily function unless such
21 treatment is performed; and

22 2. "Public funds" means state funds from any source including,
23 but not limited to, appropriations, apportionments, or revenue
24 generated by state agencies through fines, fees, or any other means.

1 B. Public funds shall not be used, granted, paid, or
2 distributed to any entity, organization, or individual for the
3 provision or subsidy of any gender transition procedure to a minor.

4 C. The state Medicaid program shall not reimburse or provide
5 coverage for any gender transition procedures to a minor.

6 D. No state property, facility, or building may be used to
7 provide gender transition procedures to a minor. This subsection
8 shall not apply if a patient is required to stay at a property,
9 facility, or building owned or operated by the state, due to a
10 medical emergency.

11 E. Patients receiving gender transition treatment shall
12 continue to receive treatment as long as the treatment was started
13 prior to the effective date of this act.

14 F. Any officer or employee of this state who intentionally
15 violates the provisions of this section shall, upon conviction, be
16 guilty of a misdemeanor.

17 SECTION 2. This act shall become effective November 1, 2026.

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